
Journal

1991 PLD 236

Court

FEDERAL SHARIAT COURT

Date

1991-08-08

Appeal No.

SHARIAT PETITIONS NOS. 7/I, 8/I OF 1991 AND 3/I OF 1990

Judge

TANZIL-UR-RAHMAN, C.J., IBADAT YAR KHAN, FIDA MUHAMMAD KHAN, ABDUL RAZZAKA. THAHIM ANDABAID ULLAH KHAN

Parties

HABIB UL WAHAB ALKHAIRI AND OTHERS PETITIONERS VERSUS FEDERATION OF PAKISTAN THROUGH SECRETARY, MINISTRY OF JUSTICE, LAW AND PARLIAMENTARY AFFAIRS, ISLAMABAD RESPONDENT

Lawyers

IFTIKHAR HUSSAIN CH., STANDING COUNSEL FOR FEDERAL GOVERNMENT, ABDUL GHAFOOR MANGI, A. A. G. SINDH, MUHAMMAD NAWAZ ABBASI, AA.-G. PUNJAB, SHAHBUDDIN BURQ, LAW OFFICER, N.-W.F.P. AND RAJA MUHAMMAD AFSAR, A. G. BALUCHISTAN FOR RESPONDENT (IN SHARIAT PETITION NO.3/I OF 1990).

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - S. 401 CRIMINAL PROCEDURE CODE (V OF 1898) - S. 402 CRIMINAL PROCEDURE CODE (V OF 1898) - S. 402-A ISLAMIC JURISPRUDENCE CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 401, 402, 402-A AND 402-B INTERPRETATION OF STATUTES CONSTITUTION OF PAKISTAN (1973) - ARTICLES 203-D AND 45 CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 494 AND 495 PAKISTAN CRIMINAL LAW AMENDMENT ACT (XL OF 1958) - S.10(4) CONSTITUTION OF PAKISTAN (1973) - ARTICLE 203-D

Judgment

TANZIL-UR-RAHMAN, C.J.-Two Shariat Petitions Nos. (1) Shariat Petition No.7/I of 1991 and (2) Shariat Petition No.8/1 of 1991 have been filed by Mr. Habib-ul-Wahab Khairi, an Advocate of Rawalpindi Shariat Petition No.7/I of 1991 challenges sections 401 to 402-B, 494 and 495 of Criminal Procedure Code, whereas Shariat Petition No.8/1 of 1991 challenges the provisions of section 10(4) of Pakistan Criminal Law Amendment Act, 1958. Besides, we will also examine herein by this judgment another Shariat Petition No.3/I of 1990, wherein, among others, the provision of section 494 of Criminal Procedure Code was also challenged.

While deciding Shariat Petition No.3/I of 1990 by our short order dated 23-5-1991, followed by detailed reasons dated 29-5-1991 alongwith two others bearing Shariat Petition No.17/1 of 1989 and Shariat Petition No.2/K of 1991, we had confined ourselves to the examination of the provisions of sections 337, 338 and 339 of Criminal Procedure Code, 1898 and sections 3 and 16 of Qanun-e-Shahadat Order, 1984 only, and had left over section 494, Criminal Procedure Code to be decided alongwith the above two Shariat Petitions Nos. 7/1 of 1991 and Shariat Petition No.8/1 of 1991, which we now hereby intend to decide by this common judgment.

2. In these three petitions the following two points have arisen to be examined by this Court under Article 203-D of the Constitution of Pakistan, 1973:- (1) Whether the Provincial Government or for that matter President of Pakistan has got power to remit the sentence? (Sections 401 to 402-B, Cr.P.C.).

(ii) Whether the State has got right to withdraw from prosecution under sections 494 and 495 of Criminal Procedure Code and section 10(4) of Pakistan Criminal Law Amendment Act, 1958.

1. REMISSION OF SENTENCE (SECTIONS 401, 402, 402-A AND 402-B OF CRIMINAL PROCEDURE CODE).

3. The above sections 401, 402, 402-A and 402-B, as challenged, relate to the remission of sentence, etc., of a convict by the Provincial Government and the President of Pakistan. The said sections read as under:- "401. Power to suspend or remit sentences.-(1) When any person has been sentenced to punishment for an offence, the Provincial Government may at any time without conditions or upon any conditions which the person sentenced accepts, suspend the execution of his sentence or remit the whole or any part of the punishment to which he has been sentenced.

(2) Whenever an application is made to the Provincial Government for the suspension or remission of a sentence, the Provincial Government may require the Presiding Judge of the Court before or by which the conviction was had or confirmed to state his opinion as to whether the application should be granted or refused, together with his reason for such opinion and also to forward with the statement of such opinion a certified copy of the record of the trial or of such record thereof as exists.

(3) If any condition on which a sentence has been suspended or remitted is, in the opinion of the Provincial Government, not fulfilled the Provincial Government may cancel the suspension or remission, and thereupon the person in whose favour the sentence has been suspended or remitted may, if at large, be arrested by any police officer without warrant and remanded to undergo the unexpired portion of the sentence.

(4) The condition on which a sentence is suspended or remitted under this section may be one to be fulfilled by the person in whose favour the sentence is suspended or remitted, or one

independent of his will.

(4-A) The provisions of the above subsection shall also apply to any order passed by a Criminal Court under any section of this Code or of any other law, which restricts the liberty of any person or imposes any liability upon him or his property.

(5) Nothing herein contained shall be deemed to interfere with the right of the President or of the Central Government when such right is delegated to it to grant pardons, reprieves, respites or remissions of punishment.

(5-A) Where a conditional pardon is granted by the President or, in virtue of any powers delegated to it, by the Central Government any condition thereby imposed, of whatever nature, shall be deemed to have been imposed by a sentence of a competent Court under this Code and shall be enforceable accordingly.

(6) The Provincial Government may by general rules or special orders, give directions as to the suspension of sentences and the conditions on which petition should be presented and dealt with.

402. Power to commute punishment.-The Provincial Government may, without the consent of the persons sentenced, commute any one of the following sentences for any other mentioned after it:-- Death, imprisonment for life, rigorous imprisonment for a term not exceeding that to which he might have been sentenced, simple imprisonment for a like term, fine.

(2) Nothing in this section shall affect the provisions of section 54 or section 55 of the Pakistan Penal Code.

402-A. Sentence of death. The powers conferred by section 401 or 402 upon the Provincial Government may, in the case of sentences of death, also be exercised by the President.

402-B. Certain restrictions on the exercise of powers by Provincial Government.-Notwithstanding anything contained in section 401 or section 402, the Provincial Government shall not, except with the previous approval of the President, exercise the powers conferred thereby in a case where the President has passed any order in exercise of his powers under the Constitution to grant pardons, reprieves and respites or to remit, suspend or commute any sentence in exercise of his powers under section 402-A." 4. As held by Superior Courts of Indo-Pak Sub-Continent section 401, Cr.P.C. confers the discretionary powers on the appropriate Government which may act on its own accord or may be moved by an application for suspension and remission of sentence to punishment awarded by the Court. Sentence includes both for punishment as well as in default of payment of fine.

(Refer PLD 1963 Dacca 422 (DB); AIR 1953 Pat. 302, AIR 1951 Nag 342). It may also be stated that there is a difference between a pardon and a mere remission of sentence. In the former case, it affects both the punishment prescribed for the offence and the guilt of the offender. In the latter case, the guilt of the offender is neither affected, nor the sentence awarded by the Court is affected, except in the sense that the person concerned does not suffer incarceration in the entire period of the sentence, but is relieved from serving out a part of it. It has been provided in the above section that in case there is an application made by some person for suspension or remission of sentence, a reference has to be made to the Presiding Judge of the Court or by which the conviction was had or confirmed, to state his opinion as to whether the application should be granted or refused. (Refer AIR 1958 Assam 183 (DB)).

5. Section 402, Cr.P.C. relates to the powers of the Provincial Government to commute punishment with or without the consent of the person sentenced which includes the sentence of death, imprisonment ' for life, rigorous imprisonment for a term not exceeding that to which he might have been sentenced, simple imprisonment for a like term, or fine. It may be stated that the Provincial Government commutes a sentence under this section as a matter of grace and not in the exercise of judicial discretion. Section 402-A provides that the powers conferred under sections 401 and 402 upon the Provincial Government may, in the case of sentence of death, also be exercised by the President. However, under section 402-B certain restrictions on the exercise of powers by Provincial Government under sections 401 and 402 have been placed inasmuch as that the Provincial Government shall not, except with the previous approval of the President, exercise the powers conferred thereby in a case where the President has passed any orders in exercise of his powers under the Constitution to grant pardons, reprieves and respite or to remit, suspend or commute any sentence or of his powers under section 402-A.

6. Now let me examine the above provisions of law in the light of Shari'ah viz. the Injunctions of Islam as laid down in the Holy Qur'an and Sunnah.

7. Regarding 'afw (pardon it seems relevant to quote first some of the Verses of the Holy Qur'an and the Ahadith of the Holy Prophet (p.b.u.h.).

THE HOLY QUR'AN: (If ye do good openly or keep it secret, or forgive evil, Lo! Allah is forgiving, powerful) (4:149) (And because of their breaking their covenant, we have cursed them and made hard their hearts. They change words from their context and forget a part of that whereof they were admonished. Thou wilt not cease to discover treachery from all save of a few of them. But bear with them and pardon them. Lo! Allah loveth the kindly).(5:13) (Those who spend (of that which Allah hath given them) in ease and in adversity, those who control their wrath and are forgiving towards mankind; Allah loveth the good. (3:134) (The guerdon of an ill deed is an ill the like thereof. But whosoever pardoneth and amendeth, his wage is the affairs of Allah. Lo! He loveth not wrong doers) (42:40) AHADITH: (It has been related that Holy Prophet (p.b.u.h.) said about Ansar "Accept their good doer and ignore their wrong doer"). (Sahih, al Bukhari, Vol. II, page 24, printed Lahore).

(A criminal was brought in the Court of Hazrat Umar. Someone said that he is a noble person. Hazrat Umar ordered that the plaintiff should be asked to forgive him because the Holy Prophet said that the opportunity to pardon a noble person should be availed). (Kanz al-Ummal, Ali al-Multaqi, printed Beirut Vol. V, page 400).

(It has been related that a man came to the Messenger of Allah and said, "I embraced a woman in some remote place of Madinah and had done with her everything except intercourse. Please punish me whatsoever you like" Hazrat Umar said to him, "Allah hath covered you and it was appropriate for you to remain in this cover." The Messenger of Allah did not reply. When the man went away the Holy Prophet sent someone for him, and recited the verse of the Holy Qur'an "Lo! good deeds annul ill deeds". Someone asked, "O the Messenger of Allah! whether this order is particularly for him or it is for all humankind" The Holy Prophet answered that this is general for all people.) (Sunan Abu Dawood, Vol. II, page 238, Print Beirut).

(It has been related on the authority of Aisha that Holy Prophet said, "Pardon the wrongs done by the noble persons except Hudood." Allama San'ani, while explaining this Hadith, writes; "It is addressed to the rulers as they are authorised to impose Ta'zir having general authority. Thus, they should look into such matters and decide in the larger interest because Ta'zir may vary according to the various ranks of the people and various kinds of crimes. (San'ani, Muhammad Ibn Ismail, Subul al-Salam, Printed Cairo, Vol. IV, page 38).

(Abu Umamah narrated that a man came to the Holy Prophet (p.b.u.h.) and said, O! Messenger of Allah! I committed a crime of Hadd, punish me for that. The Holy Prophet said to him, "Have you made ablution when you came." He answered, "Yes". The Holy Prophet said to him, "Have you offered prayer with us." He answered, "yes". Then the Holy Prophet said to him, "Go, Allah has pardoned you." 8. Now the question arises whether Ulul Amr () in Islamic polity, or in the modern terminology, the Head of State, President or his Agent, say, a Governor, has got power or authority to pardon a convict or remit his sentence? There seems to be a consensus of the Jurists that he has the authority to pardon an accused or remit the sentence of a convict who has been punished for an offence liable to Ta'zir "in public interest". He has no such power in the matter of Hudood, Qisas and Diyat. In this respect, I may quote Abdul Qadir 'Awdah, an Egyptian Judge who was sentenced to death for his affiliation with Al-Ikhawan al Muslimoon () during Jamal Abdul Nasir's regime in 1954.

He, in his well-known work () 'Al-Tashri' al-Jinai al-Islami, Vol. I, pp.256-260, wrote that:- (The jurists have based the permissibility of pardon in matter of Ta'zir on a hadith wherein the Holy Prophet said, "Ignore the Ta'zir punishment of noble persons" and a hadith wherein the Holy Prophet said, "Pardon the wrongs done by the noble persons", and that Holy Prophet said about Ansar, "Accept their good deeds and ignore their wrongs." Moreover, it has been related that a person came to the Holy Prophet and confessed to have kissed a woman without making sexual intercourse. The Holy Prophet said to him, "Have you prayed with us." He said, "Yes". The Holy Prophet released him and read the verse "good deeds annul ill deeds" (11:114). Similarly a person said to the Holy Prophet about his decision in a case in favour of Zubair, "this is because that he is the son of your aunt." The Holy Prophet became furious and did not give him Ta'zir punishment. In the same way a person said to the Holy Prophet at the occasion of dividing something, "this division is not in accordance with the orders of Allah." The Prophet did not give him any Ta'zir punishment.

Thus, if a ruler deems any public interest in pardoning an offender in matter of Ta'zir he is empowered to do so. And if he does not deem any public interest he should impose Ta'zir punishment. (Amir, Abdul Aziz, Al-Ta'zir li'l Shariah al-Islamiyyah, printed Cairo, page 510).

10. It is thus apparent that under the Islamic Criminal Law this right of the Ulul Amr is conferred on him in the public interest and is subordinate to administration. In fact the power to punish an accused coincides with the power to forgive and pardon him in order to enable him to achieve collective good, strengthening the collective system and to achieve that objective, he has been made care-taker of these matters.

11. It is noticeable that the President of Pakistan, as provided under Article 45 of the Constitution, has power to grant pardon, reprieve and respite, and to remit, suspend or commute any sentence passed by any Court, Tribunal or other Authority. We are conscious that this Court under Article 203-D (1) of the Constitution may examine and decide the question whether or not any law or provision of law is repugnant to the Injunctions of Islam, as laid down in the Holy Qur'an and Sunnah of the Holy Prophet.

But the examination of any provision of the Constitution including the question that the President has prerogative power to pardon or remit sentence, as contained in Article 45 of the Constitution, is beyond the jurisdiction of this Court. We may, however, examine the question of remission of sentence by Provincial Government as well as the President as provided under the aforesaid provisions of sections 401, 402, 402-A and 402-B, Cr.P.C., if they or any one of them is repugnant to the Injunctions of Islam as laid down in the Holy Qur'an and Sunnah of the Holy Prophet as provided under Article 203-D of the Constitution of Pakistan, 1973.

12. Section 401 relates to the powers of suspension or remission of sentence by the Provincial Government, with or without condition. Section 402 relates to the powers of the Provincial Government to commute punishment even without the consent of the person sentenced. Section 402-A provides that the powers conferred on the Provincial Government by sections 401 and 402 may, in the case of death sentence, also be exercised by the President. Section 402-B, as inserted by Criminal Procedure (Amendment Act) LVII of 1973 puts a rider on the exercise of power by the Provincial Government contained in sections 401 and 402, Cr.P.C., that the said powers will not be exercised by the Provincial Government except with the previous approval of the President, in a case where the President has passed any order in exercise of his power under Article 45 of the Constitution.

13. The above provisions of law relate to the power of the Provincial Government and the President to commute the death sentence. For the reasons discussed above, it may be observed that if the death sentence has been awarded by way of Hadd, for example, as contemplated by section 17(4) of the Offences Against Property (Enforcement of Hudood) Ordinance 1979, it is not pardonable by the Head of an Islamic State as it relates to Hudood (

14. It is, however, noteworthy that it has been specifically provided in all the four Hudood Laws that the provisions of Chapter XXIX of the Code of Criminal Procedure 1898 dealing with:- (1) Power to suspend or remit sentences (section 401).

(2) Power to commute punishment (section 402).

(3) Power to suspend, remit or commute sentences of death by the President (section 402-A) (4) Powers of Provincial Government where the President has passed order (section 402-B) of the Code of Criminal Procedure, 1898, shall not apply in respect of Hadd punishments under:- (i) Article 8 of the Prohibition (Enforcement of Hadd) Order, 1979 (see section 27(4) of Order IV of 1979).

(ii) Section 9 or section 17 of the Offences Against Property (Enforcement of Hudood) Ordinance, 1979, (see section 24(3) of Ordinance VI of 1979).

(iii) Sections 5 and 6 of the Offence of Zina (Enforcement of Hudood) Ordinance, 1979 (see section 20(5) of Ordinance VII of 1979).

(iv) Section 7 of the Offence of Qazf (Enforcement of Hadd) Ordinance, 1979 (see section 17(4) of Ordinance VIII of 1979).

15. Similarly, there is a restriction placed on the power of the Head of an Islamic State regarding commutation of death sentence if it has been awarded under the law of Qisas and Diyat and the punishment of death has been awarded by the Court as Qisas, life for life. Such power, however, vests in the hands of the heirs of deceased or the victim who suffered bodily injuries. It is noteworthy that this power of the President has been amended by section 8 of the Criminal Law (Amendment) Ordinance, 1991 (see section 402-C, Cr.P.C., newly added by Criminal Law (Amendment) Act, I of 1991), which reads as under:- "402-C. Remission or commutation of certain sentences not to be without consent.-Notwithstanding anything contained in section 401, section 402, section 402-A or section 402-B, the Provincial Government, the Federal Government or the President shall not, without the consent of the victim or, as the case may be, of his heirs, suspend, remit or commute any sentence passed under any of the sections in Chapter XVI of the Pakistan Penal Code." However, if a death sentence had been awarded by the Court of law as punishment by way of Ta'zir, the Provincial Government and the President, as

provided by the said sections 401, 402, 402-A and 402-B of the Code of Criminal Procedure, 1898, have got the power to commute the same in public interest. This power of the President, however, to grant pardon, reprieve and respite, and to remit, suspend or commute any sentence passed by Court, Tribunal or other Authority, is exercisable by him in the light of Shari'ah, in the matter of any sentence passed by way of Ta'zir. He has no power in matter of Hadd or Qisas, as discussed above.

16. An argument was advanced before us by some of the Law Officers of the Provincial Governments that the provisions contained in sections 401 to 402-B are procedural and, therefore, this Court is not competent to examine those provisions. The contention is misconceived. Merely because these provisions are contained in Criminal Procedure Code they cannot be characterised as procedural. The question of remission of sentence comes in only when the trial is over and judgment is delivered. The Court then becomes functus officio. It has no concern with procedure as to trial of a criminal case. In our view, therefore, the provisions of sections 401, 402, 402-A and 402-B, Cr.P.C. with respect to suspension, commutation or remission of sentence do not relate to the law of procedure. It is a power or, in other words, the right of the Provincial Government, in certain situations and of the Centre to suspend, remit or commute the sentence passed by a Court of law. Reference may be made to Gul Hasan's case (PLD 1980 Peshawar 1) and Muhammad Riaz v. Federal Government, etc. (PLD 1980 FSC 1). The controversy has now been set at rest by the Shariat Appellate Bench of the Hon'ble Supreme Court in appeal filed by the Federation of Pakistan against the above-said decisions of this Court as well as the Shariat Bench of Peshawar High Court (see PLD 1989 SC 633). Perhaps the Law Officers were not aware of it and it was only as the last leg of their arguments at the fag end of the day that they took the plea which, in the circumstance, has no force.

17. It is pertinent to note that in a latest decision of the Shariat Appellate Bench of the Supreme Court in Federation of Pakistan v. Public-at-Large (PLD 1991 SC 459), Dr. Nasim Hasan Shah, the then Chairman of the Shariat Appellate Bench of the Supreme Court observed that:-- "In Islam a person can be forgiven for his failure to perform Huquq-Ullah but with respect to Huquq-ul-Ibad a person must either perform it or obtain permission of the person whom he owes the rights so much so that even prayers can be interrupted for attending to Huquq-ul-Ibad." (page 462).

It, therefore, follows that in offences which relate to Haq-al-'Abd right of an individual the State cannot withdraw from prosecution.

18. As regards the definitions of Haq Allah and Haq al-'Abd. they have been stated by me in my book 'Islami Qawaneen Hudood, Oisas, Divat and Ta'zir' 1st Edition, 1981, published by Qanooni Kutab Khana, Lahore at pages 248 and 249 which read as under:- 19. As regards the power of pardoning the accused or remitting his sentence it has been written by me in the aforesaid book at pages 299-301 as under:- 20. As regards power of remission of the sentence of fine there has been difference of opinion among the jurists as to the remission of the sentence of fine. Some of the jurists are of the view that it may be remitted whereas correct and strong view is in support of the proposition that a sentence of fine cannot be remitted. I have discussed this point in my book Islami Qawaneen, Hudood, Qisas, Diyat and Ta'zir, 1st Edition, 1981 at page 302 which reads as under:- 21. The petitioner, Mr. Khairi, referred to a passage from' (Kitabul Fiqh 'Alal-madhabib Al-arb'ah) by Abdur Rahman Aljaziri of Egypt, translated by Manzoor Ahsan Abbasi, published by Mahkama Auqaf, Punjab, Lahore, Vol. V, page 1, which reads as under:- On the basis of the above, it was submitted by the petitioner that the above Hadith is general in its terms and cannot be said to be limited to Hudood only. According to him, the rule stated therein should be made applicable to all the crimes. This submission of the petitioner is misconceived and is against the interpretation of all the 'Muhaddithin () (Interpreters of Hadith).

In Shari'ah there are different incidents with regard to Hudood, Qisas and Ta'zir. The submission of the petitioner is, therefore, not tenable.

22. It was next submitted by the petitioner that the ruler or Sultan in Islamic Law has no right to forgive even in an offence liable to Ta'zir. Reliance was placed by him on a book () written by Mr. Justice (Retd.) Shamim Hussain Qadri. The relevant passage at page 251 reads as under:- The above passage relates to a situation when an offence punishable with Hadd had not only been brought to the Court of the Holy Prophet (p.b.u.h.) (who has acted as the First Qadi in Islam)-but had already been decided by him. The question of forgiving at that stage did not arise and there is no quarrel in Islamic law in the case of a Hadd.

23. The petitioner also referred to a book (I by Mawlana Muhammad Naeem Siddiqui, Vol. I, pages 248 and 257. This book is, in fact, the collection of extracts from various writings and books of late Mawlana Syed Abul 'ala Mawdoodi, particularly from his popular commentary of the Qur'an Tafhim al-Qur'an. These writings have been edited and compiled by Mawlana Muhammad Naeem Siddiqui in a systematic manner so as to give a coherent view of the Seerah of the Holy Prophet (p.b.u.h.) as understood by late Mawlana Syed Abul 'ala Mawdoodi. But the passages as referred by the petitioner have no relevance to the point at issue.

24. The petitioner also referred to a book titled as () by late Mawlana Syed Abul 'ala Mawdoodi, Part III. Reference was made to several passages appearing at pages 156-58, 248 and 257.

These passages are hardly relevant inasmuch as they relate to fundamental rights and the concept of equality in Islam, which have little bearing on the point at issue before this Court.

25. Now, to sum up, the power of remission of sentence of a convict in the matter of Ta'zir, which, according to Shari'ah, vests in the Ruler on certain conditions. Consequently, the provisions of sections 401, 402, 402-A and 402-B, as framed, are declared repugnant to the Injunctions of Islam being not in consonance with the Holy Qur'an and Sunnah of the Holy Prophet (p.b.u.h.) as they are not made subservient to the dictates of Shari'ah, discussed above. We would, therefore, like to direct the Federal Government as well as Provincial Government to add a proviso to the relevant sections that such power shall be exerciseable only if the offences relate to Haq Allah liable to Ta'zir and that too "in the public interest" as guided by the Shari'ah.

26. Since this Court has no power to examine any provision of the Constitution, as it stands excluded from its purview under Article 203-B(c) of the Constitution, we may respectfully advise the President to keep in view the Injunctions of Islam as laid down in the Holy Qur'an and Sunnah, discussed earlier, while exercising the powers under Article 45 of the Constitution even in matters of Ta'zir, keeping in view the mandate: (II. WITHDRAWAL FROM PROSECUTION (SECTIONS 494 & 495, Cr.P.C. AND SECTION 10(4) OF PAKISTAN CRIMINAL LAW (AMENDMENT) ACT, 1958).

27. The provisions of sections 494, 495, Cr.P.C. read as under:- "Section 494. Effect of withdrawal from prosecution.-Any Public Prosecutor may, with the consent of the Court, and in other cases before the judgment is pronounced, withdraw from the prosecution of any person (either generally or in respect of any one or more of the offences for which he is tried); and upon such withdrawal,- (a) if it is made before a charge has been framed, the accused shall be discharged (in respect of such offence or offences); (b) if it is made after a charge has been framed, or when under this Code no charge is required, he shall be acquitted (in respect of such offence or offences).

Section 495. Permission to conduct prosecution.-fD Any Magistrate inquiring into or trying any case may permit the prosecution to be conducted by any person other than an officer of police below the rank to be prescribed by the Provincial Government in this behalf but no person, other than the Advocate-General, Standing Counsel, Government Solicitor, Public Prosecutor or other officer generally or specially empowered by the Provincial Government in this behalf, shall be entitled to do so without such permission.

(2) Any such officer shall have the like power of withdrawing from the prosecution as is provided by section 494, and the provisions of that section shall apply to any withdrawal by such officer.

(3) Any person conducting the prosecution may do so personally or by a pleader.

(4) An Officer of police shall not be permitted to conduct the prosecution if he has taken any part in the investigation into the offence with respect to which the accused is being prosecuted."

Section 10(4) of the Pakistan Criminal Law (Amendment) Act, 1958 reads as under:- "Section 10(4). No prosecution under this Act against any person either generally or in respect of any one or more of the offences for which he is being tried shall be withdrawn except under the orders in writing of the appropriate Government." 28. Mr. Abbasi, Assistant Advocate-General, Punjab, submitted at the outset that the provisions of sections 494 and 495, Cr.P.C. are procedural in nature and thus this Court has no jurisdiction to examine them. He referred to *Sadd Shibly v. State* (PLD 1981 SC 617) wherein it was inter alia, held that the Court was under a duty to ensure such course (withdrawal from prosecution) being not an attempt to interfere with normal course of justice for illegitimate reasons or purpose or its own functioning being not thereby pre-empted.

29. ,On the other hand, it was contended by the petitioner that the provisions of sections 494 and 495, Cr.P.C. are not procedural in nature and fall within the ambit of substantive law. Reliance was placed by him on the case of *Zafar Awan v.*

Islamic Republic of Pakistan (PLD 1989 FSC 84) wherein interpreting sections 197 and 6(5) of the Pakistan Criminal Law (Amendment) Act (XL of 1958) it was observed that the said provisions are not procedural but substantive in character, because both the provisions deprive the Courts of law of their power to adjudicate upon the grievances of a citizen and ouster is based on the option and discretion of the Executive. On this analogy sections 494 and 495, Cr.P.C. and section 10(4) of the Pakistan Criminal Law Amendment Act, 1958 cannot be said as procedural.

30. Sections 494, 495 of Cr.P.C. and 10(4) of the Pakistan Criminal Law Amendment Act, 1958, relate to the powers of the Government to withdraw from the prosecution of any person generally or in respect of anyone or more of the offences for which he is tried and the accused is thereby discharged or acquitted in respect of such offence or offences whether the charge has been framed or not. The only difference in the aforesaid two provisions is that under section 494, Cr.P.C. the withdrawal from prosecution by the Provincial Government is always with the approval of the Court whereas in the case of an application moved under section 10(4) of the Pakistan Criminal Law (Amendment) Act, 1958, the power of the Government is absolute and the Court has no power to refuse withdrawal. Reference may be made to *Dr. Nazir A. Shaikh* (1989 P.Cr.LJ 1361).

31*. It is an established rule of Shari'ah that no prosecution can be withdrawn in respect of an offence punishable with Hadd at any stage. The Holy Qur'an 1 says:- (The woman and the man guilty of adultery or fornication,- Flog-each of them with a hundred stripes; let not compassion move you in their case, in a matter prescribed by Allah (underlined by me) if ye believe in Allah

and the Last Day; And let a party of the Believers witness their punishment).

32. The underlined portion of the verse ordains that when the offence of adultery is committed by a person, the culprit may not be given any concession by anyone and the prescribed punishment must be executed against such person.

33. The Holy Prophet has also established the principle that when a case of an offence liable to Hadd is referred to a Court, it cannot be withdrawn. Reference may be made to the following Ahadith:- (Safwan bin Umayyah came to Madinah and slept in the mosque and prepared his sheet as pillow. Then a thief came and stole his sheet. Safwan overtook him and came with him to the Holy Prophet. He ordered for the cutting of his hand. Safwan said; I had not intended it, it is a charity given to him. The Holy Prophet said, "why didn't you tell before you brought him to me) (Mishkatul Masabih, English Translation, Vol. II, page 556, Lahore).

(Narrated 'Aisha () The Quraish people became very worried about the Makhzumiyah lady who had committed theft. They said, "Nobody can speak (in favour of the lady) to the Holy Prophet (p.b.u.h.) and nobody dares do that except Usamah who is the favourite of the Holy Prophet (p.b.u.h.) "When Usamah spoke to the Holy Prophet about that matter the Holy Prophet (p.b.u.h.) said, "Do you intercede (with me) to violate one of the legal punishments of Allah?" Then he got up and addressed the people, saying "O people! The nations before you went astray because if an influential person committed theft, they used to leave him, but if a weak person among them committed theft, they used to inflict the legal punishment on him. By Allah, if Fatima, the daughter of Muhammad committed theft, Muhammad will cut off her hand." (Bukhari, printed Lahore, Vol. VIII, pages 512, 513, English translation).

34. The jurists are thus unanimous on the point that no prosecution can be withdrawn by anyone even by the Government in an offence liable to Hadd. Similarly, no prosecution can be withdrawn in Shari'ah in an offence liable to Qisas except by the heirs of the murdered or the victim in case of hurt.

35. Islamic Shari'ah has, however, authorised a ruler to withdraw from prosecution of a person who is tried in an offence liable to Ta'zir whether before the charge is framed against him or after that if it is in public interest. This is based on the Ahadith already quoted. (See para 7 supra).

36. The jurists, therefore, opine that a ruler is authorised to withdraw the prosecution of a person under trial in an offence liable to Ta'zir if it is "in the larger interest of the public." In this connection Allama Shami writes that "the difference between Hadd and Ta'zir is that contrary to Ta'zir no recommendation can be accepted in Hadd and that a ruler cannot waive it and it is dropped by the lapse of time (Shami, Ibn Abidin, Radd al-Muhtar, Vol. III, page 194).

37. It is creditable that the Law Officer of the N.-W.F.P., suggested that the power of the Government as provided under section 10(4) of the Pakistan Criminal Law (Amendment) Act, 1958 should be made subjected to "with the consent of the Court" as provided in section 494, Cr.P.C. The other Law Officers of the Provincial Governments did not oppose the suggestion. It is noticeable that the provisions of section 494, Cr.P.C., do not make any exception as to the cases of Hudood and Qisas and are not made subject to "in the public interest". It is noticeable that the Pakistan Criminal Law (Amendment) Act, 1958 is a special statute. Special Judges are appointed to try the offences set out in the Schedule. It is also noticeable that section 5 of the Pakistan Criminal Law (Amendment) Act, 1958, provides that:- "5.-(1) Notwithstanding anything contained in the Code of Criminal Procedure, 1898, or in any other law, the offences specified in the Schedule shall be triable exclusively by a Special Judge.

(2) The appropriate Government may, from time to time, by notification in the official Gazette, include in the Schedule such other offences as it deems necessary or expedient.....") The Schedule specifies offences liable to Ta'zir but the Government is empowered to include such other offences as it feels necessary.

38. As discussed above, prosecution for the offences liable to Ta'zir should not be allowed to be withdrawn under section 10(4) of the Pakistan Criminal Law (Amendment) Act, 1958, without permission of the Court. Moreover, the offences punishable with Ta'zir, if relate to Haq al 'Abd () cannot as well be withdrawn by the State unilaterally.

39. Thus, sections 494 and 495, Cr.P.C., and section 10(4) of the Pakistan Criminal Law (Amendment) Act, 1958 are repugnant to the Injunctions of Islam to the extent that they do not make any exception, as to the Government's power to withdraw the prosecution of a person who is tried in an offence liable to Hadd or Qisas. There should be provided an exception to that effect and furthermore the power should be tied down with general public interest even in matters of Ta'zir. It is significant to note that the provisions of sections 494 and 495 which appear in Chapter XXXVIII of the Code of Criminal Procedure have not been excluded in their application to Hudood and Qisas cases as provided in the cases of Hadd punishment under several Hudood Ordinances referred to above.

40. The abovesaid provisions of sections 401, 402, 402-A, 402-B, 494 and 495, Cr.P.C. and section 10(4) of Pakistan Criminal Law Amendment Act, 1958 unless amended and altered so as to bring them in conformity with the Injunctions of Islam as laid down in the Holy Qur'an and Sunnah, as discussed above, shall be void and cease to be effective as on 1st of January, 1992.

41. In result, the Shariat Petitions Nos.7/I and 8/1 of 1991 and Shariat Petition No.3/I of 1990 stand allowed partly to the extent stated hereinabove.

M.BA./627/FSC Order accordingly.

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